CS (COMM) No.1477/20
ICICI Bank Ltd. Vs. M/s M.R. Steel Corporation

28.01.2021

Matter heard through Videoconferencing on Cisco Webex

Present: Sh. Mohit Tyagi, Counsel for the Plaintiff.

Perusal of the record shows that the matter is pending for service upon the Defendant. Process sent to the Defendant through Whatsapp received back with the report on the mobile no. Whatsapp facility is not in use.

Having regard to all the facts and circumstances and the prevailing pandemic situation, issue fresh summons of the suit to the Defendant through ordinary process, Speed Post & Authorized Courier on filing of PF. PF be filed within three weeks.

The written statement shall be filed within 30 days from the date of service of summons upon the Defendant. If the Defendant fails to file the written statement within the said period of 30 days then on payment of such costs as the Court deems fit, they shall be allowed to file the written statement not later than 120 days from the date of service of summons. The 120 days period is the outer time limit and is mandatory and no extension can be granted. On the expiry of 120 days period, the Defendant shall forfeit the right to file the written statement.

Put up on 07.04.2021 for further proceedings.

A copy of this order shall accompany the summons.

(M.C. Gupta)
District Judge (Commercial Court)-03
Central/ THC/ Delhi.
28.01.2021